Superior Court of the State of California
County of Orange

Hon. ANDRE MANSSOURIAN
Department C12 – (657) 622-5212

TENTATIVE RULINGS

Court will make every effort to post tentative rulings by approximately 3:00 p.m. the court day before the date the motion is to be heard.

If the parties agree to submit on the Court's tentative ruling, please call Department C12 directly to inform the court that **all parties** submit to the Court's tentative ruling.

Reminder: Court does NOT provide court reporters.

No filings or briefs of any kind will be accepted after the tentative ruling is posted.

Parties are welcome to be present in court for the law and motion calendar or appear by Zoom. To make an appearance via Zoom please click the following link. If you are unable to log in, please call the department for an alternative arrangement. https://www.occourts.org/civil-remote-hearings.

June 12, 2026

#	Case Name	Tentative
1.	**Kennedy vs. Emanuel** **22-01248389**	**Motion to Compel Deposition (Oral or Written)** **OFF CALENDAR**
2.	**Lee vs. Sunny Fresh Cleaners Inc.** **23-01361660**	**1. Motion to Compel Production (x2)** **2. Order to Show Cause re: Dismissal (Entry of Default/Default Judgment)** Plaintiff Bomse Lee's Motion for Pretrial Discovery of Defendants Sunny Fresh Cleaners, Inc. and Kwang Hoon Choi's Financial Records is GRANTED.

		Civil Code § 3295 (c) states, in part, as follows: Upon motion by the plaintiff supported by appropriate affidavits and after a hearing, if the court deems a hearing to be necessary, the court may at any time enter an order permitting the discovery otherwise prohibited by this subdivision if the court finds, on the basis of the supporting and opposing affidavits presented, that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294. Before a trial court may enter an order permitting discovery of a defendant's financial condition, it must (1) weigh the evidence submitted in favor of and in opposition to motion for discovery, and (2) make a finding that it is very likely the plaintiff will prevail on his claim for punitive damages; in this context, the DCOA interpreted the words "substantial probability" to mean "very likely" or "a strong likelihood". (*Jabro v. Superior Court* (2002) 95 Cal.App.4th 754, 758). The plaintiff must establish there is a substantial probability s/he will prevail on the Civil Code §3294 claim. (*Kerr v. Rose* (1990) 216 Cal.App.3d 1551, 1565-1566 for the court to grant an order permitting pretrial discovery of the defendants' financial condition. (*Rawnsley v. Superior Court* (1986) 183 Cal.App.3d 86, 91). It is not enough for plaintiff merely to present evidence that would support a finding (prima facie proof) of "oppression, fraud, or malice." (*Jabro*, *supra*, 95 Cal.App.4th at 759.) Civil Code § 3294(a) authorizes punitive damages in an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. Plaintiff submits the declaration of Sea H. Oh, counsel for Plaintiff, to establish that there is a substantial probability that he will prevail on his punitive damages claim. Mr. Oh states through deemed Requests for Admission, Defendants have judicially admitted that Defendant Kwang Hoon Choi terminated Plaintiff based on his age despite knowing such discrimination was illegal, and that Defendants had no legitimate business justification for the termination. (Oh Decl., ¶¶ 7-8.) These admitted facts establish a substantial probability that Plaintiff will prevail on his punitive damages claim.

		Plaintiff contends that evidence of Defendants' financial condition is essential to enable the court to determine an appropriate punitive damages award at the default judgment or prove-up hearing. Without access to financial information, the Court would be required to speculate as to Defendants' net worth, frustrating the deterrent and punitive purposes of Civil Code section 3294. The motion has not been opposed by Defendants, and they have failed to present evidence disputing that it is likely Plaintiff will prevail on its claim for punitive damages. Accordingly, the motion is GRANTED. Plaintiff is permitted to engage in pretrial discovery of Defendants' financial condition pursuant to Civil Code § 3295(c). **The OSC re: Dismissal hearings are continued to December 17, 2026, at 9:30 a.m. in Department C12.** Plaintiff Moving Party to give notice.
3.	**Reicherts vs. Farris** **25-01479895**	**1. Motion for Sanctions** **2. Motion to Compel Answers to Form Interrogatories** **3. Motion to Compel Answers to Special Interrogatories** **4. Motion to Compel Production** **5. Motion to Compel Response to Requests for Admissions** **ALL MOTIONS CONTINUED. See ROA 133**
4.	**Cho vs. American Honda Motor Co., Inc.** **25-01452448**	**Motion for Discovery Sanctions** <u>Plaintiff's Continued Motion for Discovery Sanctions</u> Plaintiff Kyung Ho Cho's Motion for Discovery Sanctions was originally heard on 5/1/26. On the day before the original hearing date, Defendant made some effort to comply with the court's 10/3/25 order compelling Defendant to provide further responses to Plaintiff's Request for Production of Documents, request Nos. 7, 8, 17, 19, 20, 41, 52, 53, 54, 56, and 57. The Court continued this hearing, as it appeared the parties could possibly resolve this dispute if given further opportunity to meet and confer. To the Court's disappointment, and based upon Plaintiff's meet and confer statement, filed on 5/29/26, it appears that nothing has been

		resolved, and Defendant could not be relied on to fulfill its discovery obligations. (See Plaintiff's Statement filed May 29, 2026, as ROA 67). Plaintiff has identified several deficiencies in Defendant's supplemental responses. To the extent Plaintiff contends Defendant's supplemental responses are deficient, Plaintiff may move for an order compelling further responses. The deficiencies Plaintiff identifies do not warrant a drastic remedy such as issue sanctions, evidentiary sanctions, or terminating sanctions. (see *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 991-992; *Caryl Richards, Inc. v. Superior Court,* 188 Cal.App.2d 300, 303.) **Within 30 days of this ruling, Defendant American Honda Motor Co., Inc. shall pay monetary sanctions in the amount of $1,875 to Plaintiff.** Any further failure to comply with the Court's discovery orders could result in further monetary sanctions, issue sanctions, evidentiary sanctions, or even terminating sanctions. Plaintiff shall provide notice.
5.	**Ratzlaff vs. Unique Outdoor Designs, LLC** **20-01159991**	**1. Motion for Sanctions** **2. Motion to Be Relieved as Counsel of Record** Defendant In Intervention, Scottsdale Insurance Company's motion for terminating sanctions is DENIED. This Court takes the position that in most cases of purported spoliation, facts should be decided and appropriate inferences made by the trier of fact after a full hearing at trial, **rather than imposing non-monetary sanctions on a pretrial motion**. *New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403. Evidence Code section 413 permits the trier of fact to consider a party's willful suppression of evidence when determining what inferences to draw. Terminating sanctions are not statutorily mandated even in the face of willful discovery misconduct. *Higginson v. Kia Motors America* (2026) 118 Cal.App.5th 316. While denying the motion, it is without prejudice to Scottsdale presenting evidence and argument concerning the issue of destroyed cores to the trier of fact at trial. Scottsdale to give notice of this ruling.

		Mark M. Higuchi, Esq. / Brown & Charbonneau, LLP's motion to be relieved as counsel of record for defendant Unique Outdoor Designs, LLC is GRANTED. This order shall become effective upon the filing of the proof of service of the executed order. Higuchi to give notice of this ruling.
6.	**Pantoja vs. Collins** **23-01370879**	**1. Demurrer to Second Amended Complaint (x2)** **2. Case Management Conference** Defendant RTI Properties, Inc.'s demurrer to the ninth, tenth, eleventh, twelfth, thirteenth, fourteenth, and sixteenth causes of action is SUSTAINED in its entirety. Defendant Qualfax's demurrer to the sixteen cause of action is SUSTAINED. <u>The 9th, 10th 11th, 12th and 13th causes of action - cancellation of an instrument.</u> RTI isn't an actual party to any of the documents he seeks to cancel. Plaintiff has alleged RTI Properties is a party to the contract regarding the instruments sought to be cancelled; however, a review of the written contracts, which are attached as exhibits, shows that RTI is not the contracting party. Facts appearing in exhibits attached to a complaint will be accepted as true and given precedence if contrary to the allegations of the pleading. *Dodd v. Citizens Bank of Costa Mesa* (1990) 222 Cal.App.3d 1624. If allegations in a pleading conflict with incorporated documents, the court will treat the documents as controlling over the allegations of the complaint. *Executive Landscape Corp. v. San Vicente Country Villas IV Assn.* (1983) 145 Cal.App.3d 496. When the recitals in a written exhibit are contrary to the allegations of the complaint, they will be given precedence and the pleader's inconsistent allegations will be disregarded. *Hill v. City of Santa Barbara* (1961) 196 Cal.App.2d 580. "Under these circumstances the court will, in hearing on the demurrer, examine the exhibits and treat the pleader's conclusions as surplusage." *Alphonzo E. Bell Corp. v. Bell View Oil Syndicate* (1941) 46 Cal.App.2d 684.

		California Civil Code section 3412 provides the statutory basis for cancellation actions, stating that "a written instrument, in respect to which there is a reasonable apprehension that if left outstanding it may cause serious injury to a person against whom it is void or voidable, may, upon his application, be so adjudged, and ordered to be delivered up or canceled." To prevail on a claim to cancel an instrument, a plaintiff must prove two elements: "(1) the instrument is void or voidable due to, for example, fraud; and (2) there is a reasonable apprehension of serious injury including pecuniary loss or the prejudicial alteration of one's position." *Weeden v. Hoffman* (2016) 70 Cal.App.5th 269. As a general rule, "a party to the contract or a privy thereto, and he alone, is entitled to maintain a suit to cancel or rescind it, and one who is a stranger to, or has no interest in, the subject matter of the suit is not ordinarily entitled to such relief." *Reina v. Erassarret* (1949) 90 Cal.App.2d 418. This principle reflects the fundamental requirement that plaintiffs must have standing to challenge an instrument. The California Supreme Court has recognized that where sufficient grounds exist for rescission and cancellation of a conveyance, "it may be set aside at the suit of those succeeding to the rights of the grantor." *Reina*, supra. However, cancellation of an instrument is not necessarily confined to a party to the instrument if his legal or equitable rights are affected thereby. *Reina,* supra. This exception allows certain non-parties to maintain cancellation actions when they can demonstrate that their own interests are impacted by the instrument. For example, heirs may sue to set aside a deed made by an ancestor during his lifetime, and creditors and trustees have been recognized as having standing to seek cancellation in appropriate circumstances. *Reina,* supra. But that is not the case here. When seeking to cancel an instrument, plaintiffs must join all indispensable parties whose interests would be affected by the cancellation. "A person is an indispensable party if his or her rights must necessarily be affected by the judgment." *Majd v. Bank of America, N.A.* (2015) 243 Cal.App.4th 1293. That's not the case here. There are no facts alleged in the pleading indicating that RTI Properties, Inc. has any interest in the instruments sought to be cancelled. As such, the demurrer is sustained as to these causes of action.

		<u>Fourteenth Cause of Action for Declaratory Relief</u> RTI is correct that this cause of action fails for the same reasons discussed above: RTI is not a party to any of the agreements Plaintiff seeks to void through its declaratory relief cause of action including the Loan Agreement, Promissory Note, Deed of Trust, Intercreditor and Subordination Agreement, and Environmental Indemnity Agreement. <u>Sixteenth Cause of Action for Negligence</u> A negligence claim against a loan company would be characterized as derivative if the loan company's alleged negligence caused harm to the LLC's assets or business operations. For example, if a loan company negligently managed the LLC's loan, causing financial losses to the LLC itself, this would constitute injury to the corporate entity requiring a derivative action. *Nelson v. Anderson* (1999) 72 Cal.App.4th 1111. The fact that members' ownership interests decreased in value as a result would be merely "incidental to the injury to the corporation." *Oakland Raiders v. National Football League* (2005) 131 Cal.App.4th 621. Conversely, a member could assert a direct claim only if the loan company's negligence caused a distinct injury to the member personally, separate from any harm to the LLC. However, California courts have consistently held that claims alleging mismanagement or negligence that reduces corporate assets must be brought derivatively. *Heshejin v. Rostami* (2020) 54 Cal.App.5th 984. Either way, the claim attempts to assert both individual claims and derivative claims. That is not permitted. Capo's negligence claim against a loan company must be characterized as either derivative or direct based on who suffered the harm, and these categories are mutually exclusive under California law, precluding a claim from being both simultaneously. Plaintiff's objections to RTI's Memorandum of Points and Authorities in support if its demurrer are overruled. Plaintiff's objections to the declaration of Steven F. Kuehl are overruled. **Plaintiff is granted 30 days leave to amend.**

		The Case Management Conference is continued to December 10, 2026, at 9:30 a.m. in Department C12. Moving Party to give notice of this ruling.
7.	**Cung vs. Cung** **20-01126838**	**1. Motion for Equitable Credit** **2. Motion for Attorney Fees** **3. Notice of Joinder** **4. Motion for Final Approval** **Motion for Equitable Credit** Plaintiff Khanh Cung's Motion for Equitable Credit is DENIED. Plaintiff seeks to apportion the $99,100 in misappropriated rents against Defendant Khiem's share of the proceeds, characterizing this as a cost of the partition that can be equitably apportioned under Code Civ. Proc. §847.040. The Court has already found this to be an item of damages which was previously excised from the interlocutory judgment in the Court's ruling on Defendant Khiem's motion to vacate judgment. (See ROA 648 [8/29/25 Minute Order] at p. 3.) The court finds that this alleged misappropriation of rents is not a cost of partition and will not consider this item in apportioning the costs of the partition. **Motion for Attorney Fees** The Court previously GRANTED Plaintiff Khan Cung's Motion for Attorney Fees in part. (See ROA 723 [2/27/26 Minute Order].) The Motion was GRANTED with respect to the request for $169,332.62 in fees incurred by Plaintiff, but the hearing was continued for the issue of apportionment of those fees, which is to be addressed with the Receiver's Motion for Final Accounting. Plaintiff was also given leave to file a supplemental declaration to identify any fees that have accrued since 10/15/25. Plaintiff has submitted the declaration of Shelly J. Shafron, which indicates a further $16,080.50 has been incurred since 10/15/25. The Court has assessed Mr. Shafron's declaration and finds that these fees were reasonable, and GRANTS the motion with respect to these additional fees, for a total award of **$185,413.12**. **Plaintiff's Notice of Joinder in the Motion for Final Approval** Plaintiff's Notice of Joinder in the Referee's Motion for Final Approval and Instructions is received. To the extent that Plaintiff seeks any departure from the recommendations of the referee in this

notice of joinder, the Court shall treat this notice as part of Plaintiff's briefing in response to the Motion for Final Approval and shall address the substance of Plaintiff's requests in the forthcoming ruling on the Motion for Final Approval.

Motion for Final Approval

Referee John Pagliassotti's Motion for Final Approval and Instructions is GRANTED. (Code Civ. Proc. §873.010.)

Mr. Pagliassotti was appointed by the court to oversee the partition by sale of the two properties that are the subject of this action. The sale of the properties has been completed, and the Referee has submitted his accounting of the proceeds from the sales.

The Court has previously permitted interim distributions of the referee's fees and fees incurred by referee's counsel. (See ROA 219 435, and 526.) The referee now seeks to recover a fee of $33,012 and attorney fees of $156,263 (including interest) to his current counsel and $73,718 to his former counsel.

Mr. Pagliassotti has submitted a declaration that substantiates the $33,012 in fees incurred for services performed in this case for which he has not yet been paid. (See ROA 707, Ex. A [Pagliassotti Decl.] at ¶5, Ex. 2.) The Court has reviewed Mr. Pagliassotti's declaration and finds the **$33,012** fee to be reasonable and necessarily incurred in the course of Mr. Pagliassotti's assignment.

Referee's current counsel has submitted the declaration of Walter Whitman Moore. (See ROA 707, Ex. B [Moore Decl.].) Mr. Moore has substantiated the sought after hourly rate of $650 for services provided to the Referee. (See Moore Decl. at ¶2.) Mr. Moore has provided a breakdown of the time spent in conjunction with this matter. (See Moore Decl. at Ex. 4.) Mr. Moore has provided a basis for the calculation of interest on these fees. (See Moore Decl. at Ex. 5.) The Court finds that the total amount of **$153,411.34**, consisting of fees and interest, incurred is reasonable and is approved as a cost of the partition.

Referee's former counsel has submitted the declaration of Shelly J. Shafron. (See ROA 707, Ex. C [Shafron Decl.].) The Court has, in several instances, found Shafron's rates to be reasonable. Shafron has submitted a breakdown of the time spent providing legal services to the referee. (See Shafron Decl. Ex. 6.) Shafron has shown that, as to the $73,718.25 sought, there is a remaining balance of $35,299.25 after Defendants Kha Cung and The Thi Cung stipulated to being responsible for $38,419 of the $73,718.25. The Court finds this total amount to be reasonable, and the remaining balance is approved as a cost of the partition.

As discussed above, the Court has also approved an additional award of attorneys' fees incurred by Plaintiff in the amount of **$169,332.62.**

Equitable Assignment of Costs of Partition

The Court has discretion to equitably apportion the costs of the partition. (See Code Civ. Proc. §847.040 ["Except as otherwise provided in this article, the court shall apportion the costs of partition among the parties in proportion to their interests or make such other apportionment as may be equitable."].)

Here, the Court, in its discretion, directs that the fees of the Referee, Referee's counsel, and Plaintiff's counsel shall be equitably apportioned as follows:

1. $33,012.00 in Referee Fees shall be surcharged to Defendant Khiem Tuan Cung
2. $153,411.34 in Attorneys' Fees sought by Referee's current counsel shall be surcharged to Defendant Khiem Tuan Cung
3. $73,718.25 in Attorneys' Fees sought by Referee's former counsel shall be surcharged to Defendant Khiem Tuan Cung in the amount of $35,299.25; Defendant Kha Tuan Cung in the amount of $19,209.50; and Defendant The Thi Cung in the amount of $19,209.50.

These surcharges will result in a negative distribution to Defendant Khanh Tuan Cung. The Court agrees with the Referee's proposal to equalize this negative distribution proportionally to the three Parties who will receive a distribution from the proceeds.

Instructions for distribution of the proceeds

1. The Court hereby approves and settles the Referee's final accounts in this partition action pursuant to Code Civ. Proc. §873.010, subd. (b)(5).
2. The Court hereby instructs the Referee to pay the following fees and expenses, for services rendered in connection with the partition, in the amounts indicated, pursuant to Code Civ. Proc. §873.010, subds. (b)(2) and (b)(3):
   a. Referee's fees in the amount of $33,012.00 to the Referee. $15,570 of this amount shall be surcharged against the distribution to Defendant Khiem Tuan

Cung. $8,721 of this amount shall be surcharged against the distribution to Defendant Kha Tuan Cung. $8,721 of this amount shall be surcharged against the distribution to Defendant The Thi Cung.

   b. Attorneys' fees in the amount of $156,262.59 to the Referee's current counsel, Mashian Law Group, APC. This amount shall be surcharged against the distribution to Defendant Khiem Cung.

   c. Attorneys' fees in the amount of $73,718.42 to the Referee's former counsel, Shafron & Krammer, LLP. $19,209.50 of this amount shall be surcharged against the distribution to Defendant Kha Cung. $19,209.50 of this amount shall be surcharged against the distribution to Defendant The Thi Cung. The remaining $35,299.42 shall be surcharged against the distribution to Defendant Khiem Cung.

3. The Court hereby instructs the Referee to pay the attorneys' fees incurred by Plaintiff for the common benefit of the parties, pursuant to Code Civ. Proc. §874.010, subd. (a):

   a. Common Benefit Attorneys' fees in the amount of $185,413.12 to Plaintiff's counsel, Shafron & Krammer, LLP. This amount shall be surcharged against the distribution to Defendant Khiem Cung.

4. The Court hereby instructs the Referee to distribute the remaining proceeds, depending on whether any appeals are filed, and, in particular, directs the Referee to:

   a. If an appeal is filed, retain all proceeds until otherwise ordered.

   b. On the sooner of the date all Parties waive their right to an appeal in writing or the deadline to file an appeal expires without an appeal having been filed, the Referee shall distribute the remaining proceeds as follows:

      i. If any Party is to receive a negative distribution, that amount shall be deducted equally from the distribution owed to the remaining Parties.

      ii. Plaintiff Khanh Cung to receive 74.5%

      iii. Defendant Khiem Tuan Cung to receive 0.0%

      iv. Defendant Kha Tuan Cung to receive 10.7%

      v. Defendant The Thi Cung to receive 14.8%

5. The Court shall retain jurisdiction to provide for the disposition of any funds remaining after the conclusion of any appeals and other proceedings, including but not limited to instructing the Referee to use funds to pay for further legal fees or distribute the funds to the parties; and

		6. **6.** The Referee shall be discharged and relieved on any further obligations upon distribution of all the funds. The referee shall lodge a modified proposed order consistent with the above instructions. The referee shall provide notice of this ruling.
8.	**First American Title Insurance Company vs. Yarbrough** **25-01486497**	**Motion for Summary Judgment and/or Adjudication** Plaintiff First American Title Insurance Company's motion for summary judgment / adjudication is DENIED. (Code Civ. Proc., § 437c [authorizing motion].) Moving party's request for judicial notice is GRANTED, limited to the fact of recordation, but not the truth of the contents of the recorded documents. (*Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 264-265 [judicial notice of recorded documents]; *Poseidon Development, Inc. v. Woodland Lane Estates, LLC* (2007) 152 Cal.App.4th 1106, 1117 ["the fact a court may take judicial notice of a recorded deed, or similar document, does not mean it may take judicial notice of factual matters stated therein"].) First, moving party has not met its initial burden on the instant motion, as it relies on a theory not pled in its Complaint. (*Conroy v. Regents of University of California* (2009) 45 Cal.4th 1244, 1250 [pleadings "set the boundaries of the issues to be resolved at summary judgment"]; *Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1253 [summary judgment motion cannot be resolved based on unpled theories]; *Bostrom v. County of San Bernardino* (1995) 35 Cal.App.4th 1654, 1663 ["Summary judgment cannot be granted on a ground not raised by the pleadings"]; *Oakland Raiders v. National Football League* (2005) 131 Cal.App.4th 621, 648–649 ["Evidence offered on an unpleaded claim, theory, or defense is irrelevant because it is outside the scope of the pleadings;" citation omitted].) Plaintiff's Complaint alleges that it was damaged due to defendant Yarbrough providing an incorrect payoff demand to resolve a reverse mortgage deed of trust / lien against the subject property to the escrow holder, on which the escrow holder relied. (Complaint, ¶¶ 7 ["[t]he entity handling the escrow was given a payoff demand by Yarbrough, upon which it relied to attempt to pay off the reverse mortgage"], 8 ["Relying on the payoff demand provided by Yarbrough, $238,135.23 of the proceeds from the sale were transferred to the servicer for the

reverse mortgage"], 9 ["Ultimately, the amount stated in the payoff demand provided by Yarbrough was incorrect, and the $238,135.23 was short of the full amount required to repay the reverse mortgage"], 11-12 [plaintiff's payment to resolve reverse mortgage], 21 ["because of the inaccurate payoff demand statement provided by Yarbrough, the escrow holder did not hold back enough of the sale proceeds to repay the reverse Mortgage"].) The Complaint (¶ 20) also alleges the following "agreement" by defendant: "Yarbrough, in his individual capacity and in his capacity as trustee of the Trust, had <u>agreed to use whatever portion of the proceeds of the sale of the Property to Pine Forest were needed in order to fully satisfy and obtain the release of the reverse mortgage</u>." (Emphasis added.)

However, the instant motion does not argue that the shortfall was due to an incorrect payoff demand provided by defendant, and relies on a different agreement than alleged in the Complaint, i.e. a written purchase agreement stating in relevant part: "Title is taken in its present condition subject to all encumbrances, easements, covenants, conditions, restrictions, rights and other matters, whether of record or not, as of the date of Acceptance except for: (i) monetary liens of record unless Buyer is assuming those obligations or taking the Property subject to those obligations; and (ii) those matters which Seller has agreed to remove in writing. For any lien or matter not being transferred upon sale, Seller will take necessary action to deliver title free and clear of such lien or matter." (Moving Party Separate Statement, Fact No. 8, and evidence cited in support thereof.)

Agreeing to deliver the property free and clear of "any lien or matter not being transferred upon sale" (Fact No. 8) is not the same thing as "agree[ing] to use whatever portion of the proceeds of the sale of the Property to Pine Forest were needed in order to fully satisfy and obtain the release of the reverse mortgage" (Complaint, ¶ 20). Moving party provides no evidence of any agreement by defendant specifically to use the sale proceeds to retire the reverse mortgage obligation, as alleged in the Complaint; rather, moving party relies on an entirely different alleged agreement. Thus, as the motion relies on an unpled theory, moving party has not met its initial burden on summary judgment. (*Laabs v. City of Victorville*, supra at 1253.)

Further, even if moving party had met its initial burden, the evidence shows triable issues of material fact as to causation and damages, as well as whether the incorrect reverse mortgage payoff calculation was due to the escrow entity's actions / inaction, in whole or in part, such that it cannot be determined as a matter of law whether defendant's retention of the entire amount of damages claimed by plaintiff is "unjust." (*Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223

		Cal.App.4th 221, 231 [when a plaintiff alleges unjust enrichment, a court may construe the cause of action as a quasi-contract claim seeking restitution]; *Professional Tax Appeal v. Kennedy-Wilson Holdings, Inc*. (2018) 29 Cal.App.5th 230, 238 [the elements to a claim for "unjust enrichment" are often "simply stated as 'receipt of a benefit and unjust retention of the benefit at the expense of another;'" internal citation omitted]; *Comm. to Save Beverly Highland Homes Assoc. v. Beverly Highland* (2001) 92 Cal.App.4th 1247, 1260 [moving party's papers and evidence are strictly construed on summary judgment]; *Maxwell v. Colburn* (1980) 105 Cal.App.3d 180, 185 [moving parties' own evidence, and inferences therefrom, may disclose triable issues]; Moving Party Separate Statement, Fact Nos. 12 and 13, and evidence cited in support thereof [escrow holder withheld $238,135.72 to pay off the reverse mortgage obligation, rejected by the lender as insufficient, requiring plaintiff to pay an additional $132,163.25 to resolve on or about 5-7-26]; Sinclair Decl. in support of motion, Ex. 17 [Notice of Trustee's Sale recorded 3-17-25 by "MTC Financial dba Trustee Corps," identifying the estimated amount of the outstanding obligation on the subject property as $365,170.02, which is different than the total amount withheld by the escrow holder ($238,135.72) and the amount paid by plaintiff ($132,163.25), no explanation as to the difference; see also Defendant's Separate Statement, Additional Fact Nos. 1-7, and evidence cited in support thereof, including Yarbrough Decl., ¶ 20, Ex. C [evidence that escrow entity received payoff demand directly from reverse mortgage lender on or about 4-22-25, not defendant (despite defendant's attempts to obtain it), and prior to plaintiff's payment on or about 5-7-25].) Defendant shall give notice.
9.	**American Express National Bank vs. Kim** **25-01482908**	**1. Motion for Summary Judgment and/or Adjudication** **2. Case Management Conference** **Case Dismissed on June 9, 2026.**